

STATE OF NEW YORK

10311--A

IN ASSEMBLY

February 20, 2026

Introduced by M. of A. ROSENTHAL -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the private housing finance law, in relation to requiring a procedure for notification of a family member of a tenant or cooperator in the case that their application to succeed a lease or occupancy agreement is denied by a limited-profit housing company

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 31 of the private housing finance law is amended
2 by adding a new subdivision 16 to read as follows:

3 16. The commissioner or supervising agency shall develop a procedure
4 whereby a family member of a tenant or cooperator is notified in the
5 case that their application to succeed to a lease or occupancy agreement
6 is denied by a limited-profit housing company subject to the provisions
7 of this article, and such procedure shall also include the appeals proc-
8 ess available to the denied applicant. The notification that shall be
9 sent to the applicant shall be in written form, include reasons for the
10 denial, and the appeals process. Such appeal shall include a hearing
11 held by the commissioner or the supervising agency with the applicant,
12 or their designee, and any interested witnesses to review the housing
13 company's determination and any additional information submitted by the
14 applicant. Any limited-profit housing company may elect additional
15 procedures so long as such procedures are not inconsistent with the
16 procedures developed by the commissioner or supervising agency and any
17 other requirements set forth in this article.

18 § 2. This act shall take effect on the ninetieth day after it shall
19 have become a law. Effective immediately, the addition, amendment and/or
20 repeal of any rule or regulation necessary for the implementation of
21 this act on its effective date are authorized to be made and completed
22 on or before such effective date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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